

IN THE RESIDENT MAGISTRATE'S COURT OF DAR ES SALAAM  
**AT KISUTU**

**CRIMINAL CASE NO. 112 OF 2018**

**REPUBLIC**

*Versus*

- 1. FREEMAN AIKAELI MBOWE**
- 2. PETER SIMON MSIGWA**
- 3. SALUM MWALIMU**
- 4. JOHN JOHN MNYIKA**
- 5. ESTHER NICHOLAS MATIKO**
- 6. VINCENT BIYEGEZA MASHINJI**
- 7. HALIMA JAMES MDEE**
- 8. JOHN WEGESA HECHE**
- 9. ESTER AMOS BULAYA**

**CHARGE**

**1<sup>ST</sup> COUNT FOR ALL ACCUSED**

**STATEMENT OF OFFENCE**

**CONSPIRACY TO COMMIT AN OFFENCE;** Contrary to 384 of the Penal Code, [Cap. 16 R.E. 2002].

**PARTICULARS OF OFFENCE**

**FREEMAN AIKAELI MBOWE, PETER SIMON MSIGWA, SALUM MWALIMU, JOHN JOHN MNYIKA, ESTHER NICHOLAS MATIKO, VINCENT BIYEGEZA MASHINJI, HALIMA JAMES MDEE, JOHN WEGESA HECHE and ESTER AMOS BULAYA,** on diverse dates between 1st February 2018 and 16<sup>th</sup> February, 2018, within the Region of Dar es Salaam, jointly and together, conspired with other persons not in court to commit offences namely **UNLAWFUL ASSEMBLY, RIOT and RIOT AFTER PROCLAMATION.**

## **2<sup>ND</sup> COUNT FOR ALL ACCUSED**

### **STATEMENT OF OFFENCE**

**UNLAWFUL ASSEMBLY;** Contrary to Sections 74(1) and 75 of the Penal Code, [Cap. 16 R. E. 2002].

### **PARTICULARS OF OFFENCE**

**FREEMAN AIKAELI MBOWE, PETER SIMON MSIGWA, SALUM MWALIMU, JOHN JOHN MNYIKA, ESTHER NICHOLAS MATIKO, VINCENT BIYEGEZA MASHINJI, HALIMA JAMES MDEE, JOHN WEGESA HECHE and ESTER AMOS BULAYA,** on 16<sup>th</sup> February, 2018 at diverse places at Buibui Grounds and along Mwananyamala and Kawawa Roads areas within Kinondoni District in Dar es Salaam Region, jointly and together, being assembled with intent to carry out a common unlawful purpose, did conduct themselves in such a manner as to cause persons in the neighborhood reasonably to fear that they will commit a breach of the peace.

## **3<sup>RD</sup> COUNT FOR ALL ACCUSED**

### **STATEMENT OF OFFENCE**

**RIOT:** Contrary to Sections 74 (3), 76 and 35 of the Penal Code, [Cap. 16 R. E. 2002].

### **PARTICULARS OF OFFENCE**

**FREEMAN AIKAELI MBOWE, PETER SIMON MSIGWA, SALUM MWALIMU, JOHN JOHN MNYIKA, ESTHER NICHOLAS MATIKO, VINCENT BIYEGEZA MASHINJI, HALIMA JAMES MDEE, JOHN WEGESA HECHE and ESTER AMOS BULAYA,** on 16<sup>th</sup> February, 2018 at diverse places at Buibui Grounds and along Mwananyamala and Kawawa Roads areas within Kinondoni District in Dar es Salaam Region, jointly and together with more than twelve other persons not in court, having unlawfully assembled, began to conduct unlawful processions with an intention of invading the Office of the Director of Kinondoni Municipal Council, thereby causing breach of the peace and terror of the public.

#### **4<sup>TH</sup> COUNT FOR ALL ACCUSED**

##### **STATEMENT OF OFFENCE**

**RIOTING AFTER PROCLAMATION:** Contrary to Section 79 of the Penal Code, [Cap. 16 R. E. 2002].

##### **PARTICULARS OF OFFENCE**

**FREEMAN AIKAELI MBOWE, PETER SIMON MSIGWA, SALUM MWALIMU, JOHN JOHN MNYIKA, ESTHER NICHOLAS MATIKO, VINCENT BIYEGEZA MASHINJI, HALIMA JAMES MDEE, JOHN WEGESA HECHE and ESTER AMOS BULAYA**, on 16<sup>th</sup> February, 2018 along Kawawa road at Kinondoni Mkwajuni area within Kinondoni District in Dar es Salaam Region, jointly and together with more than twelve other persons not in court, having riotously assembled, in disobedience of proclamation to disperse made by **GERALD THOMAS NGIICHI**, a police officer of the rank of Senior Superintendent of Police (SSP), failed to disperse and continued to take part in the riot thereby breaching peace and terrifying the public culminating in the death of **AKWILINA D/O AKWILINE BAFTAA** and injuries to **H.7856 PC FIKIRI** and **E.6976 CPL RAHIM MSANGI**.

#### **5<sup>TH</sup> COUNT FOR THE FIRST ACCUSED**

##### **STATEMENT OF OFFENCE**

**PROMOTING FEELINGS OF ILL-WILL FOR UNLAWFUL PURPOSE:** Contrary to Section 63B (1) of the Penal Code, [Cap. 16 R. E. 2002] as amended by section 43 of the Written Laws (Miscellaneous Amendments)(No. 3) Act, No. 10 of 2013.

##### **PARTICULARS OF OFFENCE**

**FREEMAN AIKAELI MBOWE**, on 16<sup>th</sup> day of February, 2018 at Buibui grounds within Kinondoni District in Dar es Salaam Region, while addressing the residents of Kinondoni District in a public meeting held at Buibui grounds, did make a statement to wit; "*... ninapozungumza hapa kiongozi wetu wa kata ya Kinondoni Hananasif yupo Mochwari ... amekamatwa na makada wa CCM kwa msaada wa vyombo vya ulinzi na usalama...wamemnyonga wamemuua. Halafu sisi tunaona ni jambo la kawaida ... tunacheka na polisi...tunacheka na CCM ...*", that is likely to promote feelings of ill-will between communities of persons of the United Republic of Tanzania.

## **6<sup>TH</sup> COUNT FOR THE FIRST ACCUSED**

### **STATEMENT OF OFFENCE**

**RAISING DISCONTENT:** Contrary to Section 63B (1) of the Penal Code, [Cap. 16 R. E. 2002] as amended by section 43 of the Written Laws (Miscellaneous Amendments)(No. 3) Act, No. 10 of 2013.

### **PARTICULARS OF OFFENCE**

**FREEMAN AIKAELI MBOWE**, on 16<sup>th</sup> day of February, 2018 at Buibui grounds within Kinondoni District in Dar es Salaam Region, while addressing the residents of Kinondoni District in a public meeting held at Buibui grounds, did make a statement to wit; "***...Tumejipa kibali cha kutangulia mbele ya haki ... Haiwezekani wanaume wazima na akili zetu na wake zetu na watoto wetu ... tukafanywa ndondocha. Hii ni nchi ya ajabu. Mimi leo nipo hapa kuliandaa taifa... Kule Afrika Kusini juzi, jana aliyekuwa Rais wa Afrika Kusini Jacob Zuma amelazimishwa kujiuzulu ... Robert Mugabe wa Zimbabwe kang'olewa, kang'olewa Waziri Mkuu wa Ethiopia ... juzi ameondoka kwa people's power. Magufuli ni mwepesi kama karatasi ...***", that is likely to raise discontent amongst the inhabitants of the United Republic of Tanzania.

## **7<sup>TH</sup> COUNT FOR THE SEVENTH ACCUSED**

### **STATEMENT OF OFFENCE**

**PROMOTING FEELINGS OF ILL-WILL FOR UNLAWFUL PURPOSE:** Contrary to Section 63B (1) of the Penal Code, [Cap. 16 R. E. 2002] as amended by section 43 of the Written Laws (Miscellaneous Amendments)(No. 3) Act, No. 10 of 2013.

### **PARTICULARS OF OFFENCE**

**HALIMA JAMES MDEE**, on 16<sup>th</sup> day of February, 2018 at Buibui grounds within Kinondoni District in Dar es Salaam Region, while addressing the residents of Kinondoni District in a public meeting held at Buibui grounds, did make a statement to wit:- "***...sihitaji kuwasimulia madhila yanayomkumba kila mmoja wetu kutokana na utawala wa awamu ya tano...tunaomba kesho tukamchinja Magufuli na vibaraka wake wote...kama mbwai na iwe mbwai***", that is likely to promote feelings of ill-will between communities of persons of the United Republic of Tanzania.

## **8<sup>TH</sup> COUNT FOR THE EIGHTH ACCUSED**

### **STATEMENT OF OFFENCE**

**RAISING DISCONTENT:** Contrary to Section 63B(1) of the Penal Code, [Cap. 16 R. E. 2002] as amended by section 43 of the Written Laws (Miscellaneous Amendments)(No. 3) Act, No. 10 of 2013.

### **PARTICULARS OF OFFENCE**

**JOHN WEGESA HECHE**, on 16<sup>th</sup> day of February, 2018 at Buibui Grounds within Kinondoni District in Dar es Salaam Region, while addressing the residents of Kinondoni District in a public meeting held at Buibui grounds did make a statement to wit; ***"Kesho patachimbika, upumbavu ambao unafanywa kwenye nchi hii...wizi unaofanywa na serikali ya awamu ya tano...watu wanapotea....watu wanauawa wanaokotwa kwenye mitaro iazima ukome..."*** that was likely to raise discontent among the inhabitants of the United Republic of Tanzania.

## **9<sup>TH</sup> COUNT FOR THE FIRST ACCUSED**

### **STATEMENT OF OFFENCE**

**SEDITIONOUS OFFENCE:** Contrary to Sections 52 (1) and 53(1)(b) of the Media Services Act, No. 12 of 2016.

### **PARTICULARS OF OFFENCE**

**FREEMAN AIKAELI MBOWE**, on 16<sup>th</sup> day of February, 2018 at Buibui Grounds within Kinondoni District in Dar es Salaam Region, while addressing the residents of Kinondoni District in a public meeting held at Buibui grounds, with intent to bring hatred and contempt to the Citizens of the United Republic of Tanzania against the lawful Authority of the Government of the United Republic of Tanzania, uttered seditious words to wit; ***"... nitaongoza mapambano Nchi hii kwasababu tumechoka kuuawa ... Matokeo ya watanzania mia watakao kufa wataleta haki katika taifa hili. Wangapi wapo tayari kuchukua bei hiyo..."***

**10<sup>TH</sup> COUNT FOR THE FIRST ACCUSED**

**STATEMENT OF OFFENCE**

**SEDITIONOUS OFFENCE:** Contrary to Sections 52(1)(a) and 53(1)(b) of the Media Services Act, No. 12 of 2016.

**PARTICULARS OF OFFENCE**

**FREEMAN AIKAELI MBOWE**, on 16<sup>th</sup> day of February, 2018 at Buibui Grounds within Kinondoni District in Dar es Salaam Region, while addressing the residents of Kinondoni District in a public meeting held at Buibui grounds, with intent to excite disaffection against the lawful authority of the Government of the United Republic, uttered seditious words to wit; *"... Hii nchi ina dharaulika ... imejengewa misingi ya uoga, kwa lugha nyingine, wanaume ni kama mademu, siunawaona hao wana vaa suruali, waoga, bure kabisa ... Juzi ametekwa kijana wetu wanasema yupo mochwari, haki ya Mungu, ingekuwa nchi nyingine Kinondoni ingekuwa majivu ... Lisu amepigwa risasi Machine gun na vyombo vya dola...watanzania mnarudi nyuma ... kuna mwandishi wa habari...leo ana siku 86 amebewa na vyombo vya dola...suluhu ya nchi hii haipo Bungeni. Suluhu ya Nchi hii ipo kwa wananchi wenyewe ... lakini ili tuipate suluhu hiyo ... ni lazima tukubali kubeba majeneza...inawezekana leo mnaogopa kufa ... ni bora tuwabebe wachache hata wakiwa 200 waliokufa katika ukombozi ili hatimaye nchi hii ikasimame kama Nchi ya wanaume wengine katika dunia hii ..."*

**11<sup>TH</sup> COUNT FOR THE FIRST ACCUSED**

**STATEMENT OF OFFENCE**

**INCITING THE COMMISSION OF AN OFFENCE:** Contrary to Sections 390 and 35 both of the Penal Code, [Cap. 16 R. E. 2002]

**PARTICULARS OF OFFENCE**

**FREEMAN AIKAELI MBOWE**, on 16<sup>th</sup> day of February, 2018 at Buibui Grounds within Kinondoni District in Dar es Salaam Region, jointly and together with other persons who are not in court, incited the residents of Kinondoni District within Dar es Salaam Region, to commit an offence namely; unlawful assembly.

**12<sup>TH</sup> COUNT FOR THE SECOND ACCUSED**

**STATEMENT OF OFFENCE**

**INCITING THE COMMISSION OF AN OFFENCE:** Contrary to Sections 390 and 35 both of the Penal Code, [Cap. 16 R. E. 2002]

**PARTICULARS OF OFFENCE**

**PETER SIMON MSIGWA**, on 16<sup>th</sup> day of February, 2018 at Buibui Grounds within Kinondoni District in Dar es Salaam Region, incited the residents of Kinondoni District within Dar es Salaam Region, to commit an offence namely; going armed in public.

**13<sup>TH</sup> COUNT FOR THE NINETH ACCUSED**

**STATEMENT OF OFFENCE**

**INCITING THE COMMISSION OF AN OFFENCE:** Contrary to Sections 390 and 35 both of the Penal Code, [Cap. 16 R. E. 2002]

**PARTICULARS OF OFFENCE**

**ESTHER AMOS BULAYA**, on 16<sup>th</sup> day of February, 2018 at Buibui Grounds within Kinondoni District in Dar es Salaam Region, incited the residents of Kinondoni District within Dar es Salaam Region, to commit an offence namely; RIOT.

**Dated** at Dar es Salaam this ..... day of June 2018.

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**PRINCIPAL STATE ATTORNEY**